

Court No. - 21

Case :- WRIT - C No. - 18729 of 2023

Petitioner :- Amar Nath @ Vinay

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Amar Nath, Krishna Dev Mishra

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

1. The instant petition has been filed challenging the notice dated 9.12.2022 issued by respondent no.2 for recovery of a sum of Rs.77,891/- from the petitioner in a case of theft of electricity.
2. Sri N.K. Tiwari, counsel for the respondent Electricity Department states that the impugned recovery has been withdrawn and that fresh order will be passed after affording opportunity of hearing to the petitioner.
3. Having regard to the aforesaid statement, we dispose of the instant petition with liberty to the respondents to proceed afresh strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 30.5.2023

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